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Policing Social Protest

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PROTEST POLICING: AN INTRODUCTION

Social movements have been defined as challengers that address demands to the established members of the polity (Tilly 1978). With their very existence they challenge the given configuration of power that is expressed in the state institutions – and the state is a main interlocutor, if not opponent for them. Moreover, movements mainly rely upon protest, that is, unconventional forms of political participation. Some of these forms are illegal (such as civil disobedience), some even violent. Even legal ones, often disturb the daily routines: marches are, if nothing else, disruptive of traffic routines. For their very use of protest, social movements impact, then, on the state authority to keep public order, eliciting direct state response on the street. In this chapter, we focus on what we consider as a very important aspect of the state response to movements: the *policing of protest*, that is, the police handling of protest events – a more neutral description for what protestors usually refer to as “repression” and the state as “law and order” (della Porta 1995).

Even if the variable repression is included in several models on the preconditions for collective action (among others, Tilly 1978: esp. 101–6; Skocpol 1979; McAdam 1982), empirical research on the relationship between police and protest is still limited (but see Fillieule 1997; della Porta and Reiter 1998b). For a long time, research has been hampered by two concurrent tendencies. On the one hand, the police forces have never been very keen on opening their archives to external researchers (or even to talk with them) – a trend only recently reversed in some, but by no means not all, democracies. On the other hand, researchers often considered the police as a mere “arm of the state,” obediently following the orders of the government.

Only more recently, indeed, research started to assess a changeable degree of discretion in police behavior, justifying the study of the police as a specific actor

of the state response to social movements. The more research was carried out on the police, the more evident the complexity of the police institutions became. Investigation of the policing of protest therefore became more interesting once it was discovered that the actual functioning of the police does not follow the stereotype of a single police force with a clear hierarchy, obedient to political orders (Winter 1998a: 13). Attention to protest policing also increased with the understanding, developed especially in research on terrorism and riots, that the way in which state-controlled movements “on the street” had important consequences for their strategic choices. At their turn, waves of protest also had important effects on police organization.

In what follows, we first provide a typology of protest policing styles and their evolution. Later, we look at the explanations for such an evolution, by looking first at variables internal to the police, such as police organization and culture, and second at external opportunities and constraints. We then focus on the effects of protest policing on the fate of social movements, and conclude with reflections on the directions for future research.

FROM INJUNCTION TO INFLUENCE: A CHANGING PATTERN OF LAW ENFORCEMENT

Research on the police and protest policing produced quite a number of classifications and typologies about policing tactics, strategies, and styles of control. Some relevant dimensions are singled out (della Porta and Reiter 1998a; see also della Porta 1995) as:

- *brutal* versus *lenient*, referring to the degree of force used
- *repressive* versus *tolerant*, referring to the number of prohibited behaviors
- *diffused* versus *selective*, referring to the number of repressed groups
- *illegal* versus *legal*, referring to police respect of the law
- *reactive* versus *preventive*, referring to the timing of police intervention
- *confrontational* versus *consensual*, referring to the degree of communication with the demonstrators
- *rigid* versus *flexible*, referring to the degree of adaptability

A combination of these dimensions describes the *protest policing style* employed by the police forces at protest events. The different dimensions tend to define two coherent protest policing styles, one more opportunist, tolerant, soft, selective, and flexible, the other legalistic, repressive, hard, diffuse, and dissuasive. In fact, a “tough” style usually implies the repression of a large number of protest groups and a wide range of protest activities, via a massive use of force, and sometimes illegal tactics (such as the use of *agents provocateurs*), with low reliance on bargaining and a rigid, reactive implementation of the law. On the other hand, a “soft” style usually implies the tolerance of a large number of protest groups and a wide range of protest activities, with low reliance upon the use of force and illegal tactics, and the development instead of prevention and negotiation with a flexible implementation of the law.

In similar vein, McPhail et al. (1998: 51–4) in their research on protest policing in the US distinguished between *escalated force* and *negotiated management*, stressing that “while these two styles are ideal types, they are empirically grounded.” The two styles diverge in five ways:

- *First Amendment rights*. If in the escalated force style of policing, First Amendment rights are either ignored or disregarded as mere “cover” for demonstrators, under the negotiated management style of policing, the protection of First Amendment rights is a primary goal of the police.
- *Tolerance for community disruption*. Under the escalated force style of policing, only conventional forms of political protest are tolerated; under the negotiated management style, the police perceives an “acceptable level of disruption,” including illegal acts of civil disobedience, as legitimate.
- *Communication*. Communication between police and demonstrators is minimal under the escalated force style of policing; in the negotiated management style communication with demonstrators is considered necessary in order to keep disruption to an acceptable level.
- *Extent and manner of arrests*. Under the escalated force style, violations of the law are immediately followed by mass arrests, while under negotiated management, arrests are considered as a last resort to be used selectively, only against those who violate the law.
- *Extent and manner of using force*. Escalated force style of protest policing relies upon a dramatic show of force, often followed with a progressively escalated force; under the negotiated management style, only the minimum necessary force is used.

Different styles are also defined by the different degree of reliance upon *the power of injunction* (i.e., on the exercise or threat of exercising coercion) or on *the power of influence* (mainly based upon negotiation) (Fillieule 1997).

Most of these typologies converge to distinguish between “hard” police styles, characterized by an escalated use of force in order to implement law and order (with low respect for demonstrators’ rights) versus “soft” police styles, where negotiations (and protest rights) prevail.

The two styles of policing originally tended to overlap with the two models of policing historical research has singled out in democratic countries: in Great Britain, a model of “citizens’ police” developed, with the “civilized bobby” (unarmed, integrated into the community, and more autonomous from the political power); on the Continent, the French model of a “King’s police” (armed, living in barracks and under strict control from the central government) spread to most other countries. These two models were reflected in different styles of protest policing: “softer” in Great Britain; “harder” on the Continent. Nonetheless, more recent research on European countries indicates a progressive uniformity of protest policing.

In Great Britain, the police dealt with the riots at the beginning of the 1980s, as well as policing the miners’ strike later on, by “importing” the militarized, continental model of protest policing (Jefferson 1990). The dynamics of modernization were referred to in order to explain why the “soft” style that prevailed in the nineteenth century was replaced by a “harder” style (Reiner 1998).

On the Continent, conversely, a different trend was singled out, with a growing acceptance of forms of direct action and a move towards softer policing, which still, as we will see in what follows, is far from being applied to all social and political groups, and moreover far from being a nonreversible trend (e.g., Waddington 1994; Bruneteaux 1996; Fillieule 1997; della Porta and Reiter 1998a). During the decades from the 1950s to the 1990s, protest control evolved towards more flexible forms based on a more liberal understanding of demonstration rights (see della Porta 1995; Fillieule 1997; and the contributions in della Porta and Reiter 1998b). In parallel to this development in police doctrine and practice, recourse to demonstrations seems to have become institutionalized in a lasting manner since the late 1960s, both in the increasing number of demonstrations and their extension through all levels of society (Tarrow 1994; Dalton 1996; Kriesi et al. 1995; Fillieule 1997; Rucht et al. 1998).

In general, protest policing in democracies in the 1990s seems to be characterized by three tendencies:

- *Under-enforcement of the law.* The strategy used during the 1980s and to date appears to be dominated by the attempt at avoiding coercive intervention as much as possible. Law-breaking, which is implicit in several forms of protest, tends to be tolerated by the police. Law enforcement is usually considered less important than peacekeeping.
- *Search for bargaining.* In order to avoid disorder, complicated procedures of negotiation emerged, and recent research has indicated an increasing formalization of bargaining techniques. Great Britain, France, Germany and Switzerland have witnessed the growth of the role of police officers responsible for “public relations,” and acting as mediators between demonstrators and the forces of order, while a sophisticated systems of permits developed in the US (McPhail et al. 1998).
- *Large-scale collection of information.* Although the use of *intelligence* in the control of protestors is not a new trend (see Donner 1990, on the “red squads”), in recent times, the availability of new techniques, as well as increasing professionalization were reflected in an always increasing attention to the collection of information – as is indicated, for instance, in the control of football stadiums (della Porta 1995; De Biasi 1998).¹

Although the police–demonstrator relationship remains based upon an inherently unequal amount of power, there is a trend from a relationship of *domination* (with the choice, for demonstrators, of either submission or refusal and sanction) to a relationship of *negotiated exchange*, obviously still unequal, but in which bargaining prevails over a straightforward imposition of the rules of the game. The general assumption is, in fact, that preserving law and order in a democracy is always best assured when based upon consensus. The coercive conception poses instead a fundamental problem of credibility in a democratic regime, risking eroding the legitimacy of the governing authorities, and thus remains confined to the register of threats or is exercised with the minimum of publicity.²

If these seem to be common general trends, nonetheless, protest policing is *selective*: recent research has indicated the contemporary presence of different police styles, implemented in different situations and towards different actors. As for

France, Fillieule (1997) identified four models of protest policing based on the interactions between and perceptions shared by protestors and the police:

- *Antagonistic*, in which the police, on orders from the political authorities or their own leaders, have a distinctly repressive and/or antagonistic attitude toward nonviolent demonstrators. Most banned and nontolerated demonstrations are here concerned. The use of *agents provocateurs* falls into this category.³
- *Opportunistic*, in which the authorities handle illegal protests in a soft manner. The police take a wait-and-see stance with regard to public and private property damage. In the case of the demonstrations by farmers, in particular, both tactical and political necessities often seem to push the police towards tolerating episodes of violence. Indeed, negotiations between the police force and the protestors are oriented to define a “zone of tolerance,” “which serves to delimit in advance the type and scale of violence that will be allowed before there is an intervention of the forces of order” (Fillieule 1997: 355–6).
- *Open conflict*, in which protestor and security force commanders alike adopt a position of open conflict, as in the case of demonstrations by leftist radical groups.
- *Cooperative*, which refers to routine demonstrations based on mutual trust and which take place in a climate of mutual cooperation.

The author shows that, apart from a few exemplary cases, differences in policing conflicts do not fall neatly into these four categories, since attitudes during a demonstration are in constant flux and, for instance, a demonstration being handled according to the soft method as long as protest violence remains within certain bounds can turn into an open clash and the dispersion of the protestors as soon as security forces implement repression.

In her research on the Italian case, della Porta singled out four different models of protest policing:

- *Cooperation*, based on a collaboration between the police force and demonstrators, and an inconspicuous police presence.
- *Negotiation*, based on a more active presence by the police with the objective of mediating between the demonstrators and “nondemonstrators” who suffer the disruptive effects of the protest.
- *Ritualistic stand-off*, based on a more “aggressive” police presence, but often at a distance.
- *Total control*, based on a massive presence and close involvement of the police forces.

The principal example of the application of the first model are the large union demonstrations; of the second, direct action by unemployed or homeless people; of the third, demonstrations by the autonomous groups of the radical Left; and of the fourth, the control of football fans going to a match (della Porta 1998).

The recent return of more militarized styles of policing with a growing use of escalating force, especially in the control of the demonstrations of the movement for a “globalization from below,” testifies of this selectivity. Not only in Seattle, but also later on when marches were organized to protest against international summits, the

police strategies of intervention deviated from the rules of “negotiated management,” often violently charging peaceful demonstrators. The escalation reached its peak in 2001, in Gothenburg and especially in Genoa, when the police fired on demonstrators. The strategies of mediation and negotiation widely applied to the left-libertarian movement of the 1990s do not seem to be automatically transferred to new conflicts (and new movements) (della Porta and Reiter 2001).

POLICE CHARACTERISTICS AND POLICING STYLES

How to explain the cross-national and infra-national differences in protest policing, as well as its evolution in time? Two sets of explanations have been offered, the first referring to characteristics of the police and the second to characteristics of the external environment. As for the former, *institutional features* – such as police organization, legal codes, constitutional rights, and police powers – may play an important role in defining the opportunities for, and the constraints on protest policing, as they set the conditions for the actual strategies of protest policing. Also important are aspects of the *police knowledge* of protest, in particular, the police definition of their own role as well as the dangers involved in the protest forms, the judgment about the groups involved in protest, and the assessment about the demands coming from their environment (della Porta and Reiter 1998a).

Institutional Characteristics of the Police

Some institutional variables listed as relevant for police behavior include legislation on civil rights – in particular on civil and political rights (rights of movement, rights of expression); defendants’ rights (preventive imprisonment, presence of one’s attorney at interrogations, right of the police to interrogate a defendant); prisoners’ rights (privacy, contact with the external world). The capacity by the police to issue permits or prohibiting and sanctioning behaviors varies cross-nationally. Where police may distribute sanctions without the control of the judiciary, this power is sometimes used in order to blackmail political activists. This was the case, for instance, for Italy in the 1950s, when police sanctions such as *diffida* (cautioning) or *foglio di via* (expulsion from a town) were widely used to intimidate unionists and members of the Communist Party (Reiter 1998). The ease with which the police may declare a demonstration illegal is also relevant – the *prohibition of a demonstration* can set up violent dynamics. Research on disorderly demonstrations in London over 100 years shows that “violence has tended to occur whenever protesters have been castigated as ‘subversive’, ‘unpatriotic’, or ‘communist’; when their activities were likely to prove embarrassing to the government, monarchy or ‘national reputation’, or when the demonstration was technically illegal, occurring in defiance of legal prohibition” (Waddington 1992: 29).

The understanding of “public order” as well as the ranking of “demonstration rights” has a most important effect on protest policing. As pointed out by the research on the Italian case, a wide perception of “public order,” as a moral order “increased the police’s authority and limited political and civil rights (della Porta and Reiter 2003). Instead, demonstration rights acquire a higher priority when “public

order” is defined in material terms as defense of the life and properties of the citizens. In Germany, in 1985, a turning point for protesters’ rights was the constitutional court’s decision to uphold their right to demonstrate at an atomic power plant in Broksdorf. The court stated that demonstration rights were strongly protected by the constitution as an expression of democracy, stressing that the authorities had to develop “demonstration-friendly” attitudes and behaviors, and protect the rights of peaceful demonstrators, also *vis-à-vis* the presence of radical groups (Winter 1998a: 197).

Relevant questions about the police *organization* refer to (1) *centralization* (How much power do decentralized units have? How powerful is the central government?); (2) *militarization* (How dependent are police officers on the defense ministry? Do they live in barracks? Are they part of the army? How heavy is the emphasis on “discipline”? What type of armament do they use? Are the police unionized?); (3) *accountability* (Are there special courts for police crimes? What are the legal constraints on police “shoot to kill” policies? What are the mechanisms for citizens to complain against police mistreatment? Are police officers recognizable by identification tags? How far can the parliament investigate police behavior? And what is the power of the judiciary to hold police officers accountable?) (della Porta and Reiter 1998a: 11). Western democracies have very different traditions as far as these institutional features are concerned. As already mentioned, the British model is characterized by higher degrees of decentralization, lower militarization, and higher accountability than in continental Europe. On the Continent the police had autonomous power of interrogations and the sanctioning of suspects, which could be used – and were indeed used – against political opponents.

These models were reflected in protest policing styles. In the British model of citizen policing, decentralization has brought about an emphasis on good relationships with the community, little use of force, and openness to public scrutiny – characteristics that all pushed towards softer strategies.⁴ However, the continental model of a King’s police granted more power of intervention to the political power, reduced the possibility of democratic controls on police behavior and facilitated the use of force – favoring “tough” policing styles. Not by chance, centralization, lack of accountability and militarization are indeed the main organizational characteristics of the police in authoritarian regimes. In Italy, the militarization of the police with widespread discretionary police power (such as the autonomous power of the police to inflict sanctions without judicial proceedings) and low accountability are a legacy of the fascist regime, only partially reformed in the five decades that followed the fall of Mussolini (della Porta and Reiter 2003).

Although an institutional environment in which citizens’ rights are protected by law surely discourages repressive intervention by the police, this is insufficient to insure the peaceful enforcement of demonstration rights. In general, decentralization and demilitarization are not, per se, sufficient constraints upon police brutality. Regarding decentralization, “Local control would not guarantee that the police would be employed in ways that liberal and radical critics would like” (Waddington 1991: 134). In particular, as the Northern Ireland conflict indicates, in an ethnically divided society a decentralized local police force can become the long arm of the ethnically dominant group upon the ethnic minority (Ellison and Smyth 2000). As for demilitarization, Robert Reiner (1991: 54–5) remarked:

In violent confrontations, a “non-militaristic” response by police (i.e., without adequate training, manpower, coordination, and defensive or even offensive equipment) could mean that injuries will be multiplied. This doesn’t just mean injuries to the police, but also to others who will suffer from undisciplined and excessive violence from constables who lose their cool or their courage.

Moreover, the effects of the long-lasting trend of police professionalization on the above-mentioned characteristics are ambivalent. In general, professionalization went hand in hand with demilitarization – in fact, even in countries with recent experiences with authoritarian regimes, such as Italy and Spain, at least some branches of the police are by now “demilitarized” and police unions legalized (often after long-lasting struggles from within the police). The effects of unionization on police accountability nonetheless vary in different countries and in different movements. In Germany, the strong Gewerkschaft der Polizei, part of the Deutscher Gewerkschafts Bund, often opposed measures of tough policing (Winter 1998a). In France, the 1977 police reforms and CRS (Compagnie Républicaines de Sécurité) discontent drove some unions to incite disturbances at demonstrations to prove, via the media, the ineffectiveness of reforms which had reduced them to a subordinate role. In the 1990s high-school student movement, the astonishingly high number of police injuries and the alarmist statements of the unions to the press about “new threats” developing supported a lobbying offensive to the authorities for a renewal of defensive and offensive equipment (electric truncheons, flash balls) (Fillieule 1997). After the Genoa demonstrations, the dozens of Italian police unions (with the only exception of the left-wing one) used various forms of protest in order to channel into the media their criticism of the “campaigns against the police” (della Porta and Reiter 2001, 2003).

Equally complex are the effects of police specialization, a trend systematically singled out in police research in the last three decades (Funk et al. 1980). If on the one hand specialization implies the development of negotiating skills (among others, the formation of officers with special training in bargaining), on the other hand the deployment in public order policing of special units created for antirioting, anti-terrorism, and/or anti-organized crime emergencies have an escalating effect. In federal countries the use of these special squads has often allowed for a centralization of policing (usually a matter of the single states) (Winter 1998a: 277ff.). In countries like Italy, with a large presence of organized crime, the deployment of special anti-Mafia units in the control of mass demonstrations spread the “tough” styles developed against the Mafia to political activities, as the experience of the anti-G8 demonstrations in Genoa in 2001 dramatically indicated (Andretta et al. 2002).

Last but not least, professionalization brought about an increasing *Verrechtlichung* (legal definition) of police intervention that sometimes constrains “tough” styles (Lüdtke 1992: 17), but at other times reduces the possibility for the police to implement deescalating strategies “under enforcing” the law. For example, German police officers perceived the *Vermummungsverbot* (the prohibition to disguise oneself during public marches), introduced by conservative governments, as an unwelcome imposition on the use of force even at the risk of producing disorders (Winter 1998a: 279). Developments in the recruitment of the rank and file, improvement in the in-service training they are offered, modification of crowd containment

techniques, all have ambivalent effects on police strategies, allowing for deescalation, but also increasing police efficacy in crowd control by force (Waddington 1994; Bruneteaux 1996; Fillieule 1997; della Porta and Reiter 1998a, 1998b).⁵

Police Culture and Knowledge

In the analysis of police behavior, sociological research has developed the concept of *police knowledge*, that is, the police's perception of their role and of the external reality (della Porta and Reiter 1998a). As Manning observed, "Policing tends to be shaped by adaptations made by actors to structural patterns, to the reality they perceive, construct and maintain" (1979: 48–9). As other fields of policing, protest policing is influenced first of all by the *professional culture*, or the police images about their own role, that is, "a set of assumptions that is widely shared among officers, and includes a 'cause' to which they are expected to adhere" (Worden 1989: 674). Moreover, protest policing is influenced by the *environmental culture*, that is, a set of assumptions about the external reality – especially, but not only, the public order "problem" they are called to control (della Porta and Reiter 1998a: 22–3). Some hypotheses can be discussed at this point.

In the search for an explanation of policing styles, past research on the police, based mainly on an ethnographic approach to the urban subdivision of police at work, emphasized some characteristics of the professional culture widespread among officers. In general, the social background as well as working conditions facilitate the spread of a sense of isolation and *macho attitudes* that brings especially rank-and-file policemen to privilege crime fighting over peacekeeping (Lipset 1971; Cain 1973; Benyon 1984). In the police culture, negotiated strategies are usually reflected in a conception of the police as a "citizens' police," with respect for professionalism in crime-fighting and high importance given to peacekeeping. Instead, repression often went hand in hand with a conception of the police as the "King's police," the long branch of the government, mainly oriented towards the repression of political opposition.

Trends such as a demilitarization of the police and their professionalization tend to be reflected in a higher-class background, as well as in an increasing integration in society. Although policemen still tend to consider themselves as "craftsmen," an increasing emphasis on training, and a shift in its content, may also have produced changes in police culture. Political reforms, as in the South African case, set the ground for a (slow) change in police attitudes. In Italy, the reform of the *Polizia di Stato*, introducing unionization and opening the police to women, contributed to a change in the culture of the police, often stressed in police literature through the frame of a "police among the people" (della Porta and Reiter 2001). Similar trends in police culture have been signaled for Germany, in the 1960s, and Spain in more recent times (Jaime-Jiménez and Reinares 1998; Winter 1998b).

As for police environmental culture, police studies indicated some *stereotypes about disorders and disordered behavior*: "Police commonly develop a 'shorthand' by which they can more easily identify individuals with whom they anticipate difficulty. The shorthand may consist of generalizations about people with certain skin color, hair length or clothing style" (Lipsky 1970: 4). Stereotypes about protestors may overlap with those of other groups usually included in the (socially constructed) definition of public disorders. Recurring themes in the police definition of

those who produce disorders are references to “young, ‘outsiders’ such as immigrants, ethnic minority members or *agents provocateurs*, of those whose *lifestyle deviates from the norm*, and of *disadvantaged socio-economic groups* as being especially implicated in public disorder or as posing a special threat of it” (Lacey et al. 1990: 71; emphasis added).

Recent research has indicated a complex, and selective, image of protestors, with a legitimization of some political and social actors and the stigmatization of others (see, again, Fillieule 1997: ch. 8; della Porta and Reiter 1998a: 24–7). In police perception, “peaceful demonstrators” tend to be opposed to “hooligans.” According to a research on German police officers, in their images, “Peaceful demonstrators have a pragmatic interest, and a clear aim, for which they engage themselves with a lot of involvement and credibility. They make use of their basic right to demonstrate. Normally, they are peaceful demonstrators...with a direct interest in the conflict... They are available to discuss, they are well informed” (Willems et al. 1988: 153). The violent hooligans, instead,

are not interested in the topic of the conflict, but only in rioting, to reduce their aggression in the struggle with the police. They are described as destructive and misinformed. They travel from demonstration to demonstration, are probably supported and financed by wire-pullers... In comparison with the peaceful demonstrators, they are a relatively small group, many of them are very young, and for this reason are easy to influence. Normally, they are not interested in the discussion. (153–4)

Police distinction between “good” and “bad” demonstrators is based on their conception of “legitimate” protest. Legitimate protest, linked to social problems and organized by those who want to make themselves heard in order to solve the problems, is distinguished from that of “professional demonstrators,” who upset public order because they enjoy provocation and revolt. A similar distinction exists between “good” or “genuine” protestors (those interested in a single objective that they mobilize around) and “the opposition” (characterized for instance by the image of the London police). The former are considered to be demonstrating in good faith, protesting for good reasons; the latter are troublemakers. “‘Genuine protesters’ consisted of ordinary people who rarely protest, but felt strongly about a specific issue and wished to express their grievance. ‘The opposition’ were the ‘rent-a-mob’ of the extreme left, who protested about virtually everything, which, in police eyes, disqualified them from genuinely feeling strongly about anything” (Waddington 1994: 112–13; see also Fillieule 1997: 311–28; della Porta 1998).

Stereotypes become a kind of *guideline* for police intervention (McClintock et al. 1974: 102). Explaining police repression of disorders during the 1968 Democratic Convention in Chicago, Donner (1990: 116) observed that the police believed an army of demonstrators planned to invade the city, and misinterpreted as “true” the provoking “threats” disseminated by hippies as a sort of theater provocation to “burn the city down” or to flood the city sewers with gasoline or dump LSD in the water supply (Donner 1990: 116–17). During the anti-G8 demonstrations in Genoa in July 2001, police strategies were influenced by unreliable information provided by the secret services, indicating that the demonstrators were going to spread HIV-infected blood and take policemen hostage (della Porta and Reiter 2001). On the other hand, the development of deescalating strategies derived from an

understanding that within the mass of good demonstrators and a few bad ones a significant component exists of demonstrators reactive to police strategies: although not looking for trouble, these groups of demonstrators are nonetheless willing to respond with force to police use of force (Winter 1998a: 315ff.; della Porta and Reiter 2003).

We can add that police strategy is a function not only of the images the police have of the actors involved in a protest, but also of the image they have about other social actors, considered to be relevant to the question of public order: the police themselves, political powers, and public opinion as it is expressed through the media. In particular, the legal frame is filtered via police knowledge. In some cases, legal constraints on police behavior are disregarded in practice, but in other cases they become a focal point for the choice of police strategy. As mentioned, in Germany the Brokdorf decision of the constitutional court, stating the prevalence of demonstration rights, had a long-lasting impact on police strategies. The tradition of police respect for the legal system, as well as the relevance of a legal issue in the public sphere and its resonance with police culture seems to influence the police acknowledgment of some legal constraints and disregard for others. Moreover, police strategies are influenced by police perception of the legitimate protest in the political system and the public opinion. For instance, as Nigel Fielding observed, "Few mothers and children have been prosecuted for disrupting traffic while demanding pedestrian crossings, a very common protest in the 1970s and the 1980s. Obstruction and even conspiracy charges could have been applied, if the group were not one to whom the police judged most people to be sympathetic" (1991: 77).

CONFIGURATION OF POWER AND PROTEST POLICING

If internal characteristics of the police have relevant impacts on police behavior, research did not nonetheless disregard the environmental conditions for police intervention. Various collective actors put forward their interests or opinions, forming what Kriesi (1989) refers to as *configuration of power*. First of all, the governments define some general lines about how to deal with protest. Moreover, social movements intervene on the issue related to citizens' rights and police work, they organize protest actions to denounce police brutality, they ask for more democracy. Political parties, interest groups, trade unions, and voluntary associations conflict or cooperate with them on the issue of how to police protest. Like-minded actors on each side of the issue form coalitions upholding, on the one hand, "law and order," and on the other, "civil rights" (della Porta 1998). The *media* intervene in this picture, partially as a "spokesperson" of the one or the other coalition, and partially following an "autonomous" logic.

Protest Policing and the Government

The *degree of political control* on protest policing, which varies cross-nationally and in time, strongly influences police methods. As Geary (1985: 125–6) noticed:

Of course, constitutionally the police are supposed to be a neutral law enforcement agency independent of political influence. However, there seems little doubt that the

Government does influence the policing of industrial disputes both in terms of the overall approach and in terms of particular operational decisions.

If, in general, the police strongly assess their “technical” autonomy in the implementation of public order, in practice, there is a varying degree of intervention of the political authorities: “As a general rule, the more politically sensitive and visible in the public sphere a police intervention is, the higher the probability that the politicians in government...intervene” (Winter 1998a: 295). As Fillieule and Jobard (1998: 86) observed for France:

Differential police perceptions of demonstrators are not enough to explain differences in styles of protest handling. Political involvement has yet to be taken into account. As we have already noted, calling in any sort of security force is always the result of a decision on the part of the administrative authorities (the Prefect). This state of legal subordination suggests that we should examine both the instructions given by the civil authorities and how they are implemented in the field. We will first see that the intransigence displayed at times by the political authorities makes the outbreak of violence highly probable. Conversely, government representatives sometimes handle conflicts in a patrimonialistic manner.

The political control on the police can, still, play in different directions. If in the US there are several examples of conflicts between a liberal city mayor and his or her more conservative police, there are nonetheless also several examples in which political authorities asked a reluctant police for more repression. It is fair to say that the inputs from the political system vary with the *political orientation of the government*. Shifts in the policing of protest – or techniques of repression – have often been traced to changes in the makeup of the government.

In his explanatory model of repression in the United States, Goldstein (1978) considered the party affiliation of the American president as the most important determinant of police strategies. Several historical examples indicate that the policing of protest is an issue on which parties tend to polarize along the traditional Left–Right cleavage. Left-wing parties, with vivid memories of state repression of the labor and socialist movements, tend to rally in favor of civil liberties; conservative parties, fearful of losing votes to parties further to their right, often advocate law and order. In Italy, the center-left governments of the 1960s broke the tradition of allowing the police to shoot at demonstrators (della Porta 1995). In France, mortal incidents during demonstrations systematically increased each time the Right was in power in the 1980s and 1990s (Fillieule 1997: 335–40). In Germany, the first SPD-FDP Brandt government developed a more tolerant style of protest policing, and also liberalized laws concerning public marches and citizens’ rights (Busch et al. 1988). In his study on the policing of the industrial disputes in Great Britain, Roger Geary attributed the shift from a “hard style” to a “soft style” of protest policing – a shift he located around 1910 – to political considerations that constrained the behavior of the authorities (Geary 1985: 117). In the 1980s, a partial rollback to a harder protest policing was instead connected with the neoliberalist political choices of the conservative government led by Margaret Thatcher (Geary 1985: ch. 7). Many observers, even from within the police, explained the brutal intervention of the Italian police during the above-mentioned anti-G8 protest against the political influence of the post-fascist Alleanza Nazionale (AN) in the government (and in particular the

presence in the operational center of the Carabinieri of the leader of AN and Vice-Prime Minister Gianfranco Fini) (della Porta and Reiter 2003a). Although rarely via direct orders, also in Germany the influence of the political parties in government on policing styles, often expressed via the police chief (appointed by the state government and often with more or less explicit party affiliation), is evident in the different approaches to protest policing adopted in Christian-Democratic versus Social-Democratic states – that is, respectively, the Bayerische Linie versus the Nord-Rhein/Westfälischen Linien (Winter 1998a: 294ff.; 377ff.).

It would be, nonetheless, inaccurate to state that left-wing governments are *always* more tolerant of protest than conservative governments. In fact, there seem to be periods in which the main parties do *not* differ much from each other in their position on internal security police and public order styles (Funk 1990). One of the possible reasons for this is that protest policing is, in fact, a tricky issue for left-wing governments. A comparative research on Italy and Germany (della Porta 1995) indicated that left-wing governments often have to face aggressive law and order campaigns launched by the conservative opposition (as happened in Germany under Chancellor Brandt). Especially when the Left feels the need to legitimate itself as “fit to govern,” it makes concessions to the hardline proponents of law and order. These compromises not only inevitably disappoint social movement activists (usually to the advantage of the most radical wings); they also elicit internal criticism. About one year before the Genoa demonstration, Amnesty International had criticized police brutality in the policing of another march on globalization, this time in Naples and this time under center-left national and local governments (della Porta and Reiter 2003). Again in the policing of the protest against neoliberalist forms of globalization, the traditionally “soft” policing styles of social-democratic Sweden were abandoned during the protest in Gothenburg in 2001, resulting in a dramatic escalation in violence (Peterson and Oskarsson 2001). Just as left-wing governments are not automatically lenient towards protest, so conservatives in power do not always implement repressive policies. Strategies of deescalation in the conflict with the squatter movement in Berlin survived, for instance, the shift of the state government from center-left to center-right (Busch et al. 1988).

In general, research stresses selective strategies of protest policing. Old movements tend to be legitimized, in shorter or longer time span, but new movements emerge and the established political actors tend to be, at least initially, closed to their emerging demands. As the case of the movement for a globalization from below clearly indicates, the rise of a new actor is perceived as a dangerous challenge not only by the right-wing parties, against which the movement protests, but also by the movement’s potential allies on the Left (della Porta and Reiter 2003a and b). The brutal repression of the demonstrations in Genoa, but also earlier in Gothenburg, has been facilitated by the delegitimation of the movement in institutional politics. Moreover, escalation is very likely during ethnic conflicts, especially when police forces recruit mainly in one community. In Northern Ireland, the British style of community policing was hard to implement with a police body – the Royal Ulster Constabulary – overwhelmingly composed of Protestant Unionists. The radicalization of the civil rights movement was triggered by a military police intervention with escalated force against the Catholic community, with strategies that resonated more with the colonial policing strategy than with the British tradition of citizens’ policing (Ellison and Smyth 2000).

Protest Policing and the Public Sphere

Government choices on protest policing are sensitive to the pressures of various actors. Political parties, interest groups, and movement organizations express their preferences on protest policing, addressing either their constituency, the public, or the policymakers directly. Their discourses are then filtered through the media, and form public opinion.

Ethnographic observation of protest policing suggests in particular a central role of the relationship linking the media and police forces. Television and newspapers have catalyzed changes in the strategies used by demonstrating groups – which Patrick Champagne (1990) defines as “paper demonstrations.” Research on the police is starting to address some parallel questions: Has media presence at sites of social conflict modified the nature of demonstrations by imposing changes in police practices, or, on the contrary, do the latter remain indifferent to the “power of the media”? Moreover, what is the role of the police in the “co-construction” of the news, both as an actor in the field and, more traditionally, as a source of information?

Herbert Gans was one of the first to describe the softening effect of the media on protest policing in his analysis of social disorder news before and after the Chicago Democratic Convention in 1968, when the media denounced a “police riot” (Gans 1979: 53ff.). In his afterword to della Porta and Reiter’s book on policing protest, Gary Marx (1998: 257) remarks, “the presence of the mass media is an important factor here, serving to moderate police behavior. The symbolic importance of being always under control is given lesser importance than . . . the longer negative consequences that might flow from media accounts of police violence.” The expression “mediatization of preserving law and order” comes from a perspective that sees changes in the handling of demonstrations as being a factor of media influence. A variant of this view argues that, henceforth, police–demonstrator interactions cannot be reduced to on-site interactions: “paper demonstrations” would have become as much an issue for the police forces as for the demonstrators. As Wisler and Tackenberg (forthcoming) argue, “the portrayals of the police practices, as they are depicted in the mass media and within the political field . . . may be even more crucial for the development of major occurrences of public disorders than the ‘actual’ police action in the streets.”

Although most authors have agreed with this point of view,⁶ the situation seems more complex. The idea of “mediatization of the policing of protest” risks over-emphasizing “mediacentricism,” hiding, rather than explaining, the roots of the development it claims to describe. What is presented as a result of autonomous action by the media, is due to the various causal sequences we have described in the previous sections and, of course, the development of the kinds of action taken by the demonstrating groups themselves. In this complex process, the media appears more as an intervening variable than as a cause.⁷ Similarly, as della Porta and Reiter have noted (1998a: 18), “the mere presence of journalists, in fact, appears to have a de-escalating effect on the police, although the fact that this presence does not always discourage the police from a ‘hard’ style of intervention is testified by the very existence of media coverage of such interventions.” Additionally, media coverage of events may often “cover up” police behavior.

It does not mean that the police forces are structurally insensitive to the media. On the contrary, they generally seek, in a variety of ways, to influence the media for their own ends, among other things by using their power as a main source of information. Although this is a field of research largely unexplored in the sociology of social movements, much groundwork has been done, for example, on the construction of the crime news (Crandon 1992), and several scholars have noted the extent to which the media have tended to privilege accredited sources.⁸ Studies on media coverage of violent protest events also pointed to the use by journalists of police categories with derogatory or discrediting connotations, such as “zulus,” “vandals,” “people foreign to the student movement,” “gangs,” “wild hordes” that “swarm into” the city, “take” it, “set it ablaze” (see also Murdock 1984: 83–4; Waddington 1992: 177). As Schlesinger (1990: 68) pointed out, the category of “primary definers” is extremely loose and, among institutional actors, the chances for access to the media vary unequally according to the resources but also to situations. In this game, the police forces certainly play an important role.

In particular, the police sometimes develop strategies for maintaining public order in view of expected media coverage, particularly by recourse to the whole spectrum of provocation techniques (Fillieule 1997): the waiting game in front of demonstrator violence, *agents provocateurs* (Marx 1979), encouragement of resistance to better quash rebellion,⁹ and so on. However, there are also forms of cooperation between demonstrator groups and police forces during the event with the declared aim of “coproducing” a spectacle that will attract media attention. As Sommer (1990: 50) points out in the case of France:

Cooperation with police forces can even be a personalized service exchange between leaders on both sides or even a bargaining. Like a union representative who, to end an occupation of a public location without losing their face, call with its “direct line” the *commissaire* X: “Listen, it could be OK if you come with 200 guys, but not in a drag queen fashion!” This is a special idiom for experts to mean guys [some CRS–Compagnie Républicaine de Sécurité] with riot helmets, with many tricks on them, so that they can be impressive. And we will say to our fellows: “The only way is to get out”. Our honor is safe, we retreat under the pressure of the bayonets and my comrades are happy, you know. Everybody saw it, broadcasts were at the place, we could not escape but go out!

In many cases, the police forces openly use the media with the objective of reducing tension during the event and avoiding any outbreak of violence. Fillieule (1997) gives many examples where, under the benevolent eyes of the police, demonstrators are allowed to set fire to a bus-shelter or a truck with the sole objective of allowing photographs to be taken by the media, before everyone packs up and peacefully goes home.

MORE PROTEST OR ACQUIESCENCE? THE CONSEQUENCES OF PROTEST POLICING

We can turn now to the effects of protest policing on social movements. First of all, protest policing is a relevant, and delicate, task for the police. As Winter observed,

“during protest policing the police enters the public sphere. The police intervention inevitably takes a political dimension” (1998a: 17). In research in Germany, Helmut Willems and his collaborators (1988) noticed that the interaction with protestors “became problematic for the policemen when they have to represent interests and impose decisions whose legitimacy is put into question by the mass resistance and the protest of the population, and that, therefore, they cannot anymore interpret as a common interest.” In particular, reliance upon the political power for legitimacy is a risky attitude for the police. The more involved in political repression, the less the police will be able to raise support by the citizens, even to fulfill their tasks in crime fighting. Especially in authoritarian regimes, the delegitimation of the police brings about the creation of alternative, informal institutions to keep peace and punish crime. For instance, in South Africa, in the 1980s:

defense structures arose, both as a response to state harassment by the security forces, as well as to inadequate, partisan policing, and the perceived illegitimate justice system... These structures were simultaneously responsible for both the organization of insurrectionary activities, and for identifying and punishing individuals or groupings believed to have committed such crimes as theft, murder, and rape. (Marks and McKenzie 1995: 10; see also Brogden and Shearing 1993: 145–8)

During transitions to democracy, as the regime loses credibility and support, a usually unprofessional and underpaid police will find it harder and harder to justify their own role. In democratic regimes, in order to avoid delegitimation, the police can disregard political orders to stand firm given by the political authorities (prefect, minister) and aim primarily to satisfy the ends pursued by professional order-keeping forces: not to fight, not to wound and not to be wounded – in sum, avoid “on-the-job troubles” (Waddington 1994).

In fact, protest policing plays a most important role in the self-understanding of the police. It is no surprise, consequently, that research indicates that protest cycles affect police organization and strategies. In France, the constitution of police knowledge, police practices, and legal tools to deal with demonstrations were mostly initiated as a reaction to the changing tactics of demonstrators – the reforms of 1893–8, 1934, 1968, 1990–3 being major examples in that respect (Fillieule 1997). In Britain, the development of the decentralized police and of the conception of a “citizens’ police” followed waves of protest (Morgan 1987; Reiner 1998). In Germany, the “new line” on protest policing – with, among others, the importance given to negotiation and psychological skills – emerged from the weaknesses of police intervention in 1968, a year police officers, over three decades later, still consider to be a turning point (Winter 1998a: 310–11). In Italy, the demilitarization of the *Polizia di Stato* was one of the most unexpected consequences of the long protest cycle that had started in the mid-1960s (della Porta and Reiter 2003: ch. 4).

Policing styles also have important effects on protest tactics. “Police,” Michael Lipsky (1970: 1) stated, “may be conceived as ‘street-level bureaucrats’ who ‘represent’ government to people. And at the same time as they represent government policies, police forces also help defining the terms of urban conflict by their actions.” Police intervention has very important effects on protestors’ perceptions of the state reaction to them.

The social science literature provides us with some, not always coherent, hypotheses on the direction of these interactions. Some scholars have first of all stated that a reduction in repression facilitates the development of social movements (Skocpol 1979; McAdam 1982). The policing of protest is a particularly relevant issue not only in long established democracies, but also in regime transition and authoritarian regimes that use repression in an attempt to silence opposition. Yet, even in the most repressive regimes, protest survives in more or less visible forms, with the range going from sporadic mass demonstration to atomized individual resistance (Johnston 1996; Pickvance 1996; Bennani and Fillieule 2001). Most of these forms of protest meet with police attempts at controlling them, the most brutal of which are often followed by waves of outrage both inside the country as well as at the international level.

Moreover, a higher degree of repression was often associated with radical behavior on the part of the challengers. Goldstein concluded his comparative analysis on political repression in nineteenth-century Europe by observing that “those countries that were consistently the most repressive, brutal, and obstinate in dealing with the consequences of modernization and developing working-class dissidence reaped the harvest by producing opposition that was just as rigid, brutal, and obstinate” (Goldstein 1983: 340; see also Benanni and Fillieule 2001 on Islamic movements). Repression also often produces a shift in the aims of the protest itself that focuses on the very issue of policing – as Edward Escobar noticed in a study on the Chicano movement in Los Angeles (Escobar 1993: 1485). The reaction to police repression is the change of protest focus from single issue to the meta-issue of protest rights. Research on South Africa between 1970 and 1984 demonstrated that “high levels of repression increase the likelihood of future collective action” (Olivier 1991: 115).

Other scholars, however, have reported less clear-cut outcomes. In a review of studies on the American protest movements in the 1960s and 1970s, Wilson (1976) observed that the empirical results sometimes indicate a radicalization of those groups exposed to police violence, at other times their retreat from unconventional actions. In the comparison of Italy and Germany (della Porta 1995: ch. 3), it emerged that more repressive and diffuse techniques of policing tend, at the same time, to discourage the mainly peaceful protesters while fueling the more radical fringe.

In order to explain the complex relations between repression and social movement activities we have to take into account the fact that protest policing influences both costs and (expected) benefits of collective action. First, state repression represents one of the most relevant (potential) costs of taking part in collective behavior (Tilly 1978). Even if other costs and benefits are taken into account – and even if collective behavior is not always “rational” – the weight of the cost defined by state repression would be difficult to overstate. But the form of repression influences the same grievances that spark protest in the first place, for example, by creating “injustice frames” (Gamson et al. 1982). The more “repressive” the state, therefore, the higher the potential benefits of collective action, since the “punishment” of the unfair state would become part of the expected rewards, and the need to “do something” would appear all the more urgent to some activists. As indicated in research on the radicalization of the New Left, cases of brutal repression (in particular, the death

of demonstrators) tended to produce among the activists images of an “unfair state,” delegitimizing the political institutions as nondemocratic (della Porta 1995).

Moreover, we have to consider the characteristics of specific social movements. Material and cultural resources available for challengers contribute to determine when episodes of high repression are likely to trigger waves of moral protest, and when instead they will demobilize movements. The development of spirals of violent action–reaction is facilitated in movements with a radical ideology and semiclandestine structures. However, escalation is more difficult the less the legitimacy of the violent repertoire and the more open and decentralized the organizational structure. For the Italian social forums that followed the Genoa Social Forum, for instance, the experience of repression did not justify violent reactions, and much attention was paid to avoid escalation in the numerous mass demonstrations that followed the anti-G8 protest (della Porta 2003).

Besides the directions of large historical trends, researchers pointed at the dynamics of escalation or deescalation in specific police protestors’ encounters via the *reciprocal adaptation of police and protestors’ tactics*. The relationship between protestors and the police does not have a unique causal determination: protest tactics influenced the police tactics through interactive processes. On the other hand, adaptations to police tactics affects protest organizational structures and strategies. As for the former, the development of *servizi d’ordine* (marshal bodies) was the militant response to a militarization of the interactions between demonstrators and police forces (della Porta 1995). As for the movement repertoires, the escalation of the antinuclear protest in Germany involved the ritualization of the conflict between an increasing militant wing of activists and an increasingly aggressive police. On one side of the conflict, in fact, a militant group began to organize, appearing at all the various protest events and pushing for direct confrontation; on the other side, the state police, bolstered by police units from different states, used massive intervention. A similar ritualization of physical confrontations – although at a larger scale – nowadays involves movement against neoliberalist globalization and the American and European police forces, in particular during the policing of countersummit protest (della Porta and Reiter 2001). These interactive processes have to be taken into account to explain the dynamics of escalation (see also McAdam 1983).

In general, some internal dynamics of protest policing *facilitated* escalation. In particular, the main instrument of coercive police intervention – the baton charge – easily leads to escalation.

The reason why baton charges are difficult to control is known colloquially in the Metropolitan Police as “the red mist”. This refers to a potential cocktail of psychological conditions which diminishes any person’s self-control, and from which the police are not exempt. Baton charges require officers to act aggressively in conditions of relative anonymity... they may be wearing protective clothing with visors to obscure their facial features; and they will almost certainly be acting, not as individuals, but as a group. The target of their actions will not be other individuals, but an equally anonymous collective – “the crowd”, “Them” – who will have insulted and physically attacked “Us” – the police. Officers’ anger and frustration will thus have been aroused, and a baton charge will allow retaliation in conditions which minimize individual responsibility. The violence that the police employ in response is seen, certainly by the police themselves, as justified – upholding the law – a feeling that inhibits restraint. Baton charge is also physically arousing because of the exertion involved. In striking members

of the crowd officers are likely to experience pleasure, not because they are sadists, but because they will undergo a reduction in physical stress which is experienced as pleasurable and which will encourage them to repeat the aggressive action. Psychologically, these are conditions virtually designed to encourage aggression and violence. Added to this volatile mixture, the human physique makes it extremely difficult to strike in a manner other than that which will inflict serious injury. Whilst officers are instructed to strike people with their batons only on the arms, legs and torso, and are forbidden to hit people on the head, this is an unnatural action which is likely to be forgotten in the heat of the moment. The natural inclination is to strike downwards. (Waddington 1991: 177–8)

Escalation can also derive from *organizational dynamics*. As Monjardet observes (1990: 217ff.), at least three main organizational mechanisms in police intervention favor escalation: the dialectic of centralization and autonomy in police units, the difficulties of coordinating the different groups, and uncertainty about the aims of the intervention. Although a police force may have well-developed techniques for controlling large masses, it may be ill prepared to isolate and control small groups operating within larger, peaceful crowds (Monjardet 1990: 233; see also della Porta 1995; Fillieule 1997: 252–81).

SOME CONCLUSIONS AND PERSPECTIVES FOR FURTHER RESEARCH

In *Demonstration Democracy* (1970), Etzioni observed, at the beginning of the 1970s, that recourse to direct expression of opinions was becoming increasingly common in democratic countries, visible both in the growing number of demonstrations and their diffusion through all levels of society. Ten years later, in the last chapter of *Political Action* (1979), Barnes et al. observed that demonstrations are now established as a normal aspect of political participation. These accounts of the growing institutionalization of street action seem timelier than ever for the 1980s and 1990s. Recourse to demonstrations in Europe seems to have become an everyday event involving most social actors (Kriesi et al. 1995; Fillieule 1997; Rucht et al. 1998). In a parallel way, the analysis of the doctrine and practice of maintaining public order seems to indicate that today cooperation, or at least tolerance, takes precedence over direct confrontation.

This movement, though, embodies a paradox that is also to be found in the history of other modes of protest actions: to the extent that demonstrations have become widespread, acceptable, and more predictable, they seem to have lost political effectiveness. From this point of view, Piven and Cloward are undoubtedly right to prefer the term “normalization” to that of institutionalization to describe this kind of development (Piven and Cloward 1992). This tendency to normalization has entailed at least two consequences.

On one hand, it has shifted the priority of protest movements from the need to “make trouble” to the need to “make up the numbers,” which clearly means that the resources that may contribute to the success of a demonstration have changed in nature and are, above all, accessible to groups with strong organization and powerful backing. The same would apply to strikes whose revolutionary potential has weakened as they have become institutionalized (Piven and Cloward 1977;

McCammon 1990). In general, the protest policing style based upon negotiation reduces disruption and therefore the visibility of protest (della Porta and Reiter 2003).

On the other hand, the dominant political discourse developed around the notion of “a communications society” aims at eliminating all traces of social conflict in favor of negotiation and dialogue (Neveu 1994). In this world, conflict is increasingly perceived as pathology, and the rules of “good demonstrating” increasingly exclude the legitimacy of recourse to violence, or even civil disobedience. Radical protest is more and more considered as not only illegitimate, but even unpolitical (della Porta and Reiter 1998a). The fact that demonstrations are increasingly perceived as a peaceful and legitimate mode of expressing opinions effectively reinforces the exclusion of groups poor in other resources and for whom disruption is a last resource, justifying by the same token the selective resurgence of repression. In fact, the distribution of resources that allows one to adapt to the new rules of the game of “opinion-gear democracy” is neither equally nor randomly distributed among social groups.

This last observation warns us against the idea of a continual process of pacification of nonconventional participation that would fit into a process of euphemization of violence, inspired – often without much rigor – by the Elias school of sociology and for which one finds the exact counterpart in the idea of a civilizing process on the agents of state violence, due to the effect of greater transparency. Everything indicates that the forms of demonstrations, from the decision to hold one to the forms it can take in action, are the product of a number of variables of which it is difficult to say if they have followed, are following or will follow, even tendentially, a continuous process of institutionalization and routinization. The legitimacy of protest is always subject to contingent historical processes, and a return to a radicalization of street action and/or of repression cannot be excluded.

More research is needed, especially on the selectivity of protest policing, with “soft” treatment of “good demonstrators” and “tough” treatment of “bad ones.” The events of September 11, 2001, prompt further investigation into how a change in geopolitical circumstances affects the policing of internal turmoil. In both the US and Europe, the reaction to the threat of fundamentalism and terrorism has resulted, in the short term, in a reduction of democratic freedoms in the so-called “advanced democracies,” but it has also stifled liberalization processes in some Southern countries. New trends seem all the more important to study, since protest is becoming increasingly global, constructing a new public sphere.

Notes

- 1 Gary Marx (1979: 112–14) observes that agencies that deal with intelligence gathering and the prevention of crime or subversion have an *inherent tendency to expand*. Control agencies would consequently produce political deviants. A similar point is raised by David Garret, in a study of the FBI involvement against Martin Luther King (Garret 1981: 224–5).
- 2 This last point highlights the role of the mass media in the practical management of social conflicts in the field (more on this point later).

- 3 On the use of the *agent provocateur*, see Marx (1979) and, for an analysis of a contemporary case in France, Fillieule (1997: 340–51).
- 4 An important factor in pushing towards “soft” policing is, for instance in the US, the fear that financially strapped governments face lawsuits from citizens claiming to have been mistreated (Marx 1998: 267). On the deescalating role of lawsuits, see also McCarthy and McPhail (1998: 103) about Act Up in the US.
- 5 Mainly, a whole set of techniques based on the idea of a necessary distance between demonstrators and officers has been progressively implemented (Fillieule and Jobard 1998).
- 6 See, e.g., Geary (1985: 129–30) on Great Britain; della Porta et al. (1998: 127–8) on Italy and France; Favre (1990: 161–2) on France; McCarthy and McPhail (1998) and McPhail et al. (1998) on the US.
- 7 E.g., it is because policing techniques have moved towards keeping demonstrators at a distance (with the aim of protecting police officers from attack) that television and newspapers, sheltered by the police barricades, can cover the event live and close-up.
- 8 There are – e.g., in Marx (1979) and Gans (1979: 269, 274) – numerous details of the ways the police seek to feed disinformation to the media; Gitlin (1980: 27ff.), regarding the political power’s strategies to discredit the Students for a Democratic Society, suggests a typology, several elements of which refer to police action. Systematic disagreements about the number of demonstrators – the police figures as against those provided by the organizers (Fillieule 1997), or the official releases about the number of injured policemen (Fillieule 1997: 122–3) – are part of this problematic (also Hall et al. 1978; Murdock 1984; Waddington 1990; Fielding 1991; Anderson 1997: 38–72; della Porta and Reiter 1998a; Fillieule and Jiménez forthcoming).
- 9 This is an age-old technique, as indicated by Le Roy Ladurie’s work on the troubles of a Roman carnival at the turn of the sixteenth century, during which a coalition of notables fueled a tax revolt only to bloodily repress it (Le Roy Ladurie 1979).

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